

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                            |                           |                                                                                                                                                                                                                                  |
|--------------------------------------------------|--------------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Pradine Saint-Fort              | Team:<br>Team # 7                          | CCRB Case #:<br>200611845 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 09/01/2006 7:14 PM   | Location of Incident:<br>Macombs Road Park | 18 Mo. SOL<br>3/1/2008    | Precinct:<br>46                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Tue, 09/05/2006 8:22 AM | CV Reported At:<br>IAB                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 09/07/2006 1:37 PM                                                                                                                                                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POF Karlise Herndon | 08098  | 940258 | 046 PCT |
| 2. POM Jose Rodriguez  | 04854  | 940657 | 046 PCT |
| 3. An officer          |        |        |         |
| 4. POM Matthew Hart    | 26047  | 941142 | 046 PCT |

| Witness Officer(s)       | Shield No | Tax No | Cmd Name |
|--------------------------|-----------|--------|----------|
| 1. SGT Patrick Brown     | 03075     | 920053 | 046 PCT  |
| 2. POM Brian Shea        | 13360     | 924483 | 046 PCT  |
| 3. POM Brendan Rafter    | 15552     | 923001 | 046 PCT  |
| 4. POM Joseph White      | 11664     | 935965 | 046 PCT  |
| 5. POM Christop Canelliz | 20260     | 936292 | 046 PCT  |
| 6. POM Michael Nguyen    | 28063     | 939116 | 046 PCT  |

| Officer(s)              | Allegation                                                                             | Investigator Recommendation |
|-------------------------|----------------------------------------------------------------------------------------|-----------------------------|
| A . POF Karlise Herndon | Force: At Macombs Road Park, PO Karlise Herndon used physical force against § 87(2)(b) | A . Exonerated              |
| B . POM Jose Rodriguez  | Force: At Macombs Road Park, PO Jose Rodriguez used a chokehold against § 87(2)(b)     | B . Unfounded               |
| C . POF Karlise Herndon | Force: At Macombs Road Park, PO Karlise Herndon used physical force against § 87(2)(b) | C . Exonerated              |
| D . An officer          | Force: At Macombs Road Park, an officer hit § 87(2)(b) against an iron fence.          | D . Unfounded               |

| Officer(s)           | Allegation                                                              | Investigator Recommendation |
|----------------------|-------------------------------------------------------------------------|-----------------------------|
| E . POM Matthew Hart | Abuse: At § 87(2)(b) PO Matthew Hart<br>threatened to arrest § 87(2)(b) | E . Exonerated              |

## SYNOPSIS

At approximately 7:14 p.m. on September 1, 2006 § 87(2)(b) had a loud verbal argument with her cousin, § 87(2)(b) in Macombs Road Park in the Bronx. PO Karlise Herndon and PO Jose Rodriguez asked § 87(2)(b) and § 87(2)(b) about the argument and informed them that if they continued to argue they would have to leave the park. § 87(2)(b) did not cooperate with the instructions that the officers issued. PO Herndon attempted to place her under arrest and grabbed § 87(2)(b) arm (**Allegation A**). § 87(2)(b) resisted arrest. PO Rodriguez allegedly assisted by placing his arm around § 87(2)(b) neck and pulled her backward (**Allegation B**). PO Herndon pulled on § 87(2)(b) arm to pull her off the bench (**Allegation A**). Either PO Herndon or PO Rodriguez handcuffed § 87(2)(b). PO Herndon threw § 87(2)(b) younger sister, § 87(2)(b) to the ground (**Allegation C**). An unidentified officer allegedly took § 87(2)(b) by her handcuffs and pushed her into a fence (**Allegation D**). § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A and C be **exonerated**. § 87(2)(g) it is recommended that Allegations B and D be **unfounded**.

At an unknown time on September 1, 2006 § 87(2)(b) went to § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in the Bronx. § 87(2)(b) is § 87(2)(b) mother and went to the emergency room area of § 87(2)(b) to speak to the medical personnel attending to her daughter. § 87(2)(b) was also present. An officer, PO Matthew Hart, threatened to arrest § 87(2)(b) (**Allegation E**). § 87(2)(g)

It is recommended that Allegation E be **exonerated**.

## SUMMARY OF COMPLAINT

§ 87(2)(b) and § 87(2)(b)

Sgt. Michael Decandido of the 46th Precinct filed this complaint with IAB on September 1, 2006 [3A-B]. The case was forwarded to the CCRB on September 5, 2006 [4A-C].

§ 87(2)(b) a § 87(2)(b) black female, provided three statements with regard to the present incident. On § 87(2)(b) § 87(2)(b) provided a statement to medical personnel at § 87(2)(b) [encl. 5A-B]. § 87(2)(b) provided a telephone statement to the undersigned investigator on October 2, 2006 [encl. 5C]. She provided a statement at the CCRB during her in-person interview on October 10, 2006 [encl. 5D-H]. § 87(2)(b) an § 87(2)(b) black female, provided a statement at the CCRB during her in-person interview on January 11, 2007 [encl. 6A-D]. § 87(2)(g)

On September 1, 2006, at approximately 7:14 p.m., § 87(2)(b) and her cousin, identified through this investigation as § 87(2)(b) were having an argument in the park located on Macombs Road in the Bronx. § 87(2)(b) and § 87(2)(b) were loud and § 87(2)(b) stated that she may have been cursing. § 87(2)(b) cousins were also present and have been identified through this investigation as § 87(2)(b) and § 87(2)(b) little sister § 87(2)(b) was also present. There were approximately five to seven additional unidentified persons in the park.

Two officers, identified through this investigation as PO Jose Rodriguez and PO Karlise Herndon, entered the park and approached § 87(2)(b). Before the officers had even arrived, § 87(2)(b) and § 87(2)(b) were no longer arguing or speaking loudly. § 87(2)(b) explained to PO Rodriguez that she and § 87(2)(b) were just having a disagreement. § 87(2)(b) started walking towards the swings to get her little sister and PO Herndon followed her. PO Herndon grabbed § 87(2)(b) left arm and § 87(2)(b) shrugged her shoulder to free her arm from PO Herndon's grasp. To the medical personnel, § 87(2)(b) stated that officers struck her over the left eye with a stick and insisted that she remembered all events that transpired [encl. 5A]. § 87(2)(b) later told other personnel that she was struck with a "billy club" on the right side of her face and was thrown against the fence [encl. 5B]. In her in-person statement to the CCRB, § 87(2)(b) made no mention of being struck with a stick of any kind. At the CCRB § 87(2)(b) did state that she was thrown against the fence.

PO Rodriguez then told § 87(2)(b) that if she and her cousins were going to be loud then they would have to leave. § 87(2)(b) and her cousins sat on a bench. PO Rodriguez and PO Herndon approached them and PO Herndon asked § 87(2)(b) for her age. § 87(2)(b) asked PO Rodriguez why PO Herndon was questioning her and § 87(2)(b) decided that she and her cousins were going to leave the park. PO Herndon told § 87(2)(b) that she could not leave the park and that she was going to be arrested. PO Herndon took out her handcuffs and walked towards § 87(2)(b). § 87(2)(b) wrapped her right hand around the back of the bench and held onto the bench. According to § 87(2)(b) PO Herndon instructed § 87(2)(b) to turn around and § 87(2)(b) did not comply or respond. § 87(2)(b) stated that PO Herndon pulled her left arm attempting to pull her off of the bench. § 87(2)(b) claimed that PO Herndon used her hands to choke § 87(2)(b).

According to § 87(2)(b) PO Rodriguez placed his arm around the front of § 87(2)(b) neck and pulled her backwards. § 87(2)(b) recalled that PO Rodriguez placed a soft black object that bent around § 87(2)(b) neck. Either PO Rodriguez or PO Herndon placed the handcuffs on § 87(2)(b) wrists. § 87(2)(b) was handcuffed while she was seated on the bench. PO Rodriguez at some point began walking § 87(2)(b) towards the swing set. PO Rodriguez was standing to § 87(2)(b) left and she turned her body around and saw PO Herndon throw § 87(2)(b) to the ground. According to § 87(2)(b) she stood approximately an arm's length away behind PO Herndon and screamed "Stop!" towards PO Herndon and PO Rodriguez. PO Herndon turned around and lifted her by both arms and slammed § 87(2)(b) to the ground, derriere first.

An unidentified officer, PO1 approached § 87(2)(b) from behind and grabbed her away from the grasp of PO Rodriguez. PO1 held § 87(2)(b) by her handcuffs and proceeded to push § 87(2)(b) into a large iron fence that borders the entire park. PO1 tightened the handcuffs after he had pushed her against the fence. PO1 then escorted § 87(2)(b) to an awaiting van. At some point during the incident, § 87(2)(b) heard PO Herndon call § 87(2)(b) a "bitch." § 87(2)(b) went to her cousins' home where she remained after the incident in the park.

PO Herndon was in the van with § 87(2)(b). PO Herndon told § 87(2)(b) that if she said anything to her, she was going to tell someone that § 87(2)(b) had threatened her.

§ 87(2)(b) was eventually taken to the hospital. § 87(2)(b) heard an officer, identified through this investigation as PO Matthew Hart, tell her mother, § 87(2)(b) that she was not allowed in that area. PO Hart removed his handcuffs from his belt. § 87(2)(b) did not recall what else transpired between PO Hart and § 87(2)(b).

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b) black female, provided two statements in regard to the present incident. § 87(2)(b) provided a telephone statement to the undersigned investigator on October 2, 2006 [encl.7A]. She provided an in-person statement at the CCRB during her in-person interview on October 10, 2006 [encl. 7B-F]. § 87(2)(g)

On September 1, 2006, at approximately 7:14 p.m., § 87(2)(b) was not present at the Macombs Road Park in the Bronx. On that date, at an unknown time later in the evening, § 87(2)(b) took a taxicab to § 87(2)(b) located at § 87(2)(b) and § 87(2)(b) in the Bronx. When § 87(2)(b) arrived, the triage nurse had already seen § 87(2)(b). § 87(2)(b) father, was already at the hospital and was seated in the waiting room. § 87(2)(b) spoke with him momentarily. § 87(2)(b) reported to the triage room and informed hospital personnel that she was § 87(2)(b) mother and was there to answer any questions that the staff may have regarding § 87(2)(b) medical history.

An unidentified nurse took § 87(2)(b) to the nurse's station to wait for one of the doctors. While § 87(2)(b) stood at the nurses' station an officer, identified through this investigation as PO Matthew Hart, approached her. PO Hart told § 87(2)(b) that she was not allowed to stand at the nurses' station and had to relocate to the waiting area. § 87(2)(b) told PO Hart the instructions and limitations that an unidentified officer at the 46<sup>th</sup> Precinct stationhouse gave her. PO Hart stated that he would arrest § 87(2)(b) if she did not move. PO Hart removed his handcuffs and held them in his hands. The unidentified nurses at the station then told PO Hart that § 87(2)(b) was told to stay by the station to wait for § 87(2)(b) doctor.

§ 87(2)(b) left from nurses' station and went to the waiting area where she used a payphone to call the precinct. She spoke to an unidentified officer that told her he would send additional officers and

that she would be able to remain by the station. § 87(2)(b) § 87(2)(b) remained at the hospital until § 87(2)(b) § 87(2)(b) was transported back to the precinct.

### **RESULTS OF INVESTIGATION**

#### **Witnesses**

§ 87(2)(b) § 87(2)(b) cousins, § 87(2)(b) and § 87(2)(b) were all present during the incident in the park. Attempts were made to schedule these individuals. § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) missed an appointment. § 87(2)(g) .

#### **Additional Witnesses**

According to the statements of PO Rodriguez, PO Herndon, § 87(2)(b) § 87(2)(b) and § 87(2)(b) there were some adults and other children in the park. These persons were neither identified nor interviewed. § 87(2)(g) .

#### **Identification of Officers Interviewed**

PO Jose Rodriguez appears as the arresting officer on § 87(2)(b) § 87(2)(b) arrest report and appeared on the IAB referral report. PO Karlise Herndon appears on the IAB referral report. PO Herndon also appears as PO Rodriguez's partner on the 46<sup>th</sup> Precinct roll call for tour three of September 1, 2006. According to the SPRINT related to this incident, the anti-crime sergeant responded to the scene. The 46<sup>th</sup> Precinct roll call lists Sgt. Patrick Brown as the anti-crime supervisor on the date of incident. Sgt. Brown stated that he appeared on the scene with PO Brian Shea, PO Brendan Rafter, and PO Joseph White. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) provided the partial shield number of the officer that allegedly threatened to arrest her. The partial number corresponded to one officer in the 46<sup>th</sup> Precinct, PO Matthew Senegeto. The prisoner holding pen roster lists PO Senegeto as the officer that transported § 87(2)(b) § 87(2)(b) to § 87(2)(b) PO Senegeto changed his last name to PO Hart.

#### **PO Jose Rodriguez**

PO Rodriguez is a § 87(2)(b) old Hispanic male who § 87(2)(b) . He has black eyes, black hair, § 87(2)(b) . He was appointed to the service on January 9, 2006.

#### ***Memo Book***

PO Rodriguez did not provide his memo book.

#### **PO Karlise Herndon**

PO Herndon is a § 87(2)(b) year old black female who § 87(2)(b) . She has black hair, brown eyes, § 87(2)(b) . She was appointed to the service on January 9, 2006.

#### ***Memo Book***

PO Herndon did not provide her memo book.

#### ***Combined statements of PO Rodriguez and PO Herndon***

PO Rodriguez was interviewed at the CCRB on December 28, 2006 [encl. ]. PO Rodriguez filled an aided report for PO Herndon on September 1, 2006 [encl. ]. PO Rodriguez provided a statement to the

Bronx District Attorney [encl. ] on September 2, 2006 and provided a statement on the on-line booking sheet on September 1, 2006 [encl. ]. § 87(2)(g)  
§ 87(2)(b) PO Herndon was interviewed at the CCRB on December 7, 2006 [encl. ]. § 87(2)(g)  
§ 87(2)(b)

On September 1, 2006 PO Rodriguez and PO Herndon were assigned as partners to patrol a foot post.

At approximately 7:14 p.m. on September 1, 2006 PO Herndon and PO Rodriguez were walking along the street alongside the park on Macombs Road in the Bronx. They observed two females, identified through this investigation as § 87(2)(b) and § 87(2)(b) arguing. The altercation was on the brink of becoming a physical fight. There were other children in the park but neither PO Rodriguez nor PO Herndon recalled how many persons in the park. According to PO Herndon, she asked § 87(2)(b) and § 87(2)(b) if everything was fine. To PO Herndon, § 87(2)(b) responded, "Fuck you I don't have to speak to you." According to PO Herndon, she and PO Rodriguez asked § 87(2)(b) and § 87(2)(b) to leave the park because they were causing a public disturbance. PO Rodriguez stated that PO Herndon informed § 87(2)(b) and § 87(2)(b) that if they did not disband they would be issued summonses for disorderly conduct. According to PO Rodriguez, § 87(2)(b) replied, "Fuck you, bitch" to PO Herndon.

§ 87(2)(b) immediately left the park but § 87(2)(b) remained. None of the children left the park. PO Herndon alone or with PO Rodriguez, asked § 87(2)(b) for identification and told her she would be issued a summons for disorderly conduct. § 87(2)(b) refused to furnish her identification and she walked away and sat down on the bench. Approximately four to five other children identified through this investigation as § 87(2)(b) and § 87(2)(b) sat down on the bench beside § 87(2)(b). PO Herndon and PO Rodriguez again asked § 87(2)(b) for her identification. § 87(2)(b) responded, "No, fuck you, call my mother."

PO Herndon informed § 87(2)(b) that since she did not want to provide her identification she would be placed under arrest and taken to the stationhouse. According to PO Rodriguez, § 87(2)(b) then told PO Herndon, "Fuck you bitch, I am not going anywhere!" PO Herndon took out her handcuffs and grabbed for § 87(2)(b) arm to place her under arrest. § 87(2)(b) punched PO Herndon with a closed fist in PO Herndon's arm. PO Herndon stated that she was struck in the right arm. According to PO Herndon, she attempted to grab § 87(2)(b) arm again. PO Rodriguez recalled that PO Herndon held onto § 87(2)(b) hand to avoid being struck again. PO Herndon did not recall if PO Rodriguez assisted after she was punched. PO Rodriguez recalled standing in between PO Herndon and grabbing § 87(2)(b) by the waist to prevent further physical altercation.

PO Herndon called for further assistance. PO Rodriguez did not remember if any of the children interfered with § 87(2)(b) arrest. PO Herndon recalled that a female child, identified through this investigation as § 87(2)(b) climbed on PO Herndon's back and punched her on her back. PO Herndon's handcuffs fell out of her hand and her nightstick was out of her gun belt. PO Herndon did not know who removed her nightstick neither did she know how it was removed. § 87(2)(b) tried to prevent PO Herndon from arresting § 87(2)(b). PO Herndon turned around and grabbed both of § 87(2)(b) arms. PO Herndon told § 87(2)(b) to relax and not hit her. § 87(2)(b) stopped hitting PO Herndon and began screaming, "I want my Mommy!" PO Herndon then pushed § 87(2)(b) to the side. § 87(2)(b) fell to the ground after being pushed but PO Herndon did not believe she fell as a result of the push.

According to PO Rodriguez, he was not cognizant of what PO Herndon was doing because he was holding § 87(2)(b) who was pulling away from him. Two unidentified officers arrived on the scene and § 87(2)(b) ran away from PO Rodriguez and clutched onto the top of the nearby bench. According to PO Herndon, she tried to restrain § 87(2)(b) with the handcuffs but could not. PO Herndon recalled pulling § 87(2)(b) arm in effort to remove her from the bench. § 87(2)(b) grabbed PO Herndon's shirt and PO Herndon attempted to use physical force to arrest § 87(2)(b) and could not. § 87(2)(b) continued to resist but either one or both of the unidentified officers pulled her arms and placed her in handcuffs. Either one or both unidentified officers escorted § 87(2)(b) to the impact van.

PO Rodriguez never placed his arm near § 87(2)(b) neck, nor did he place her in a chokehold. PO Herndon never grabbed § 87(2)(b) neck. According to PO Herndon no officer ever used a nightstick or stick of any kind to strike § 87(2)(b). Neither PO Herndon nor PO Rodriguez slam § 87(2)(b) to the ground. PO Herndon did not tell § 87(2)(b) that she would tell someone that § 87(2)(b)

§ 87(2)(b) threatened her. PO Herndon did not have any conversation with § 87(2)(b) while she was transported to the precinct.

PO Herndon sustained scratches to her face and a bruise on the left arm.

Sgt. Patrick Brown

Sgt. Brown is a § 87(2)(b) year old white male who § 87(2)(b). He has brown hair, blue eyes and § 87(2)(b). He was appointed to the service on December 8, 1997.

*Memo Book [encl. 10A-B]*

Sgt. Brown did not have any entries in his memo book.

*CCRB Statement on April 18, 2007 [encl. 10C-D]*

Sgt. Brown was interviewed at the CCRB on April 18, 2007. On September 1, 2006 Sgt. Brown was in plainclothes and was assigned to supervise the anti-crime team. He worked with PO Brian Shea, PO Brendan Rafter, and PO Joseph White. He was assigned to a marked RMP.

On September 1, 2006 at approximately 7:14 p.m. Sgt. Brown responded to a call of an officer needing assistance at 176<sup>th</sup> Street and Macombs Road in the Bronx. As Sgt. Brown arrived, he observed PO Karlise Herndon bringing a handcuffed female, identified through this investigation as § 87(2)(b) out of the park. Sgt. Brown did not observe any physical interaction that ensued between PO Herndon and § 87(2)(b) in the park. Sgt. Brown did not observe any physical interaction between § 87(2)(b) and a male officer in the park. Neither Sgt. Brown, nor PO Shea, nor PO Rafter, nor PO White assisted PO Herndon in walking § 87(2)(b) to a patrol unit. Sgt. Brown did not push § 87(2)(b) nor did he have any physical contact with § 87(2)(b).

Sgt. Brown asked PO Herndon about what transpired. PO Herndon explained that she observed two females, identified through this investigation as § 87(2)(b) and § 87(2)(b) fighting in the park. When PO Herndon approached them to break up the altercation she asked § 87(2)(b) for her identification. § 87(2)(b) then turned around pushed PO Herndon then § 87(2)(b) struck PO Herndon in the left shoulder. PO Herndon informed Sgt. Brown that a struggle ensued between her and § 87(2)(b). During the struggle PO Herndon called for further police units to assist her.

PO Herndon did not have any visible injuries. PO Herndon did not indicate to Sgt. Brown the type of force that was used during the struggle between her and § 87(2)(b). There were no other sergeants on the scene. Sgt. Brown observed another RMP on the scene but did not recall which officers were in that vehicle.

PO Matthew Hart

PO Hart is a § 87(2)(b) year old white male who § 87(2)(b). He has brown hair, brown eyes and § 87(2)(b). He was appointed to the service on January 31, 2006.

*Memo Book [encl. 11A-C]*

2100 hrs Prisoner transport

Stationhouse to § 87(2)(b)

ACR # § 87(2)(b)

Bus # § 87(2)(b) I EMT § 87(2)(b)

§ 87(2)(b) PO Karlise Herndon equals arresting officer

2109 hrs Transport

§ 87(2)(b)

*CCRB Statement on April 2, 2007 [encl. 11D-E]*

PO Hart was interviewed at the CCRB on April 2, 2007. On September 1, 2006, PO Hart was first assigned to patrol foot post 36 with a partner, PO Adrian Ramos. At the time of incident PO Hart's name was "PO Senegeto." At approximately 9 p.m., PO Hart was at the stationhouse and was assigned to prisoner transport.

On September 1, 2006, at approximately 7:14 p.m., PO Hart was not at the initial incident location in Macombs Park in the Bronx. At approximately 9 p.m., PO Hart was assigned to transport § 87(2)(b) to § 87(2)(b). PO Hart was given orders from supervision, that § 87(2)(b) was not to have any visitors. Upon arrival at § 87(2)(b), PO Hart did not observe any visitors there for her. PO Hart's partner was not present with him. Two members of § 87(2)(b) family arrived on the scene, at least one female. PO Hart did not recall the gender of the other visitor. This investigation identified the female visitor as § 87(2)(b) and the other visitor as § 87(2)(b). PO Hart informed § 87(2)(b) and § 87(2)(b) that they would have to leave the premises. PO Hart did not ask either § 87(2)(b) why they were in that specific area. § 87(2)(b) and § 87(2)(b) appeared agitated, but PO Hart did not recall any specific statements that they made. § 87(2)(b) was more agitated. Neither left the area. PO Hart repeated his order for them to leave the premises. § 87(2)(b) and § 87(2)(b) continued to appear agitated and raised their voice so as to disturb the emergency room and the other patients. Two unidentified security guards took notice of § 87(2)(b) and § 87(2)(b) and approached but did not interact with them. PO Hart did not have to call additional units for assistance. PO Hart then explained to § 87(2)(b) and § 87(2)(b) that they could be arrested if they did not leave the premises. PO Hart understood that the visitors' agitated state coupled with their raised voices constituted disorderly conduct, an offense for which they could have been arrested. PO Hart did not recall how they reacted to being told to leave for a third time, but they eventually left the area. A sergeant arrived on the scene later on to inspect PO Hart's memo book.

#### Medical Records [encls. 5A-B, 12A-O]

§ 87(2)(a) PHL § 18(6)

#### NYPD Documents

##### *46<sup>th</sup> Precinct Roll Call [encl. 13A-N]*

On September 1, 2006, during tour 3, Sgt. Brown was assigned as anti-crime supervisor. The anti-crime unit included PO Rafter, PO Shea and PO White. PO Herndon and PO Rodriguez were assigned as partners to patrol foot posts 69 and 72. PO Cristop Cannelliz, PO Michael Nguyen, and PO M. Rosso were assigned to mobile impact van. PO Rafael Maracallo and PO Primitivo Montanez were assigned to mobile impact in a RMP# 1929.

##### *SPRINT [encl. 14A-C]*

On September 1, 2006 at 7:14 p.m., 46<sup>th</sup> Precinct foot post 66 verified that there was an arrest and requested additional units to the location. An emergency service unit was called then deemed unnecessary at 7:20 p.m. The anti-crime supervisor was on the scene at 7:13 p.m. At 7:17 p.m. an impact van transported one female to the stationhouse.

##### *Prisoner Holding Pen Roster Excerpt [encl. 15A]*

On September 1, 2007, at approximately 7:23 p.m., PO Rodriguez placed § 87(2)(b) into the holding cell. At 8:55 p.m., PO Hart transported § 87(2)(b) to § 87(2)(b) and returned to the holding cell at § 87(2)(b). § 87(2)(b) was removed from the cells at 4:15 a.m.



[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(a) Fam. Ct. Act § 381.3]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### Disposition of charges related to September 1, 2006

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### Civilian CCRB History [encls. 2A-C]

§ 87(2)(b) does not have any prior CCRB complaints.

§ 87(2)(b) has two additional complaints with the CCRB, § 87(2)(b)

#### Subject Officer CCRB History [encls. 1A, 1B]

PO Herndon does not have any prior CCRB complaints.

PO Rodriguez does not have any prior CCRB complaints.

### CONCLUSIONS AND RECOMMENDATIONS

#### Undisputed Facts

The successive statements are not in dispute. In Macombs Road Park, § 87(2)(b) was arguing with § 87(2)(b) PO Herndon and PO Rodriguez approached § 87(2)(b) and § 87(2)(b) and inquired about their argument. § 87(2)(b) sat on a bench and PO Herndon grabbed her arm in attempt to get her off of the bench. § 87(2)(b) was arrested.

§ 87(2)(b) and § 87(2)(b) went to § 87(2)(b) at § 87(2)(b) and § 87(2)(b) where § 87(2)(b) was receiving medical treatment. While at the hospital, PO Hart told § 87(2)(b) that she could be arrested if she remained in the emergency room area.

#### Disputed Facts

§ 87(2)(g)

#### Identification of Subject Officers

§ 87(2)(b) and § 87(2)(b) described that a black female officer in uniform entered the park accompanied by a light skinned male officer that was also in uniform. The IAB referral report indicated that PO Herndon, a black female, and PO Rodriguez, a Hispanic male, were the officers initially on the scene. No other black female officer arrived on the scene. During the in-person interview with PO Rodriguez and PO Herndon, they both confirmed their level of involvement in the incident. § 87(2)(g)

There were several officers who may have arrived on the scene in response to this incident. § 87(2)(g)

#### Credibility

§ 87(2)(g)

[REDACTED]

#### Allegations Not Pleaded

§ 87(2)(g)

[REDACTED]

**Allegation A, Force:** At Macombs Road Park, PO Karlise Herndon used physical force against § 87(2)(b)

**Allegation B, Force:** At Macombs Road Park, PO Jose Rodriguez used a chokehold against § 87(2)(b)

**Allegation D, Force:** At Macombs Road Park, an officer hit § 87(2)(b) against an iron fence.

PO Herndon admitted to grabbing § 87(2)(b) arms in order to effect her arrest. PO Rodriguez denied placing § 87(2)(b) in a chokehold or ever having his arms near § 87(2)(b) neck. PO Rodriguez did admit to holding her by her waist in order to separate § 87(2)(b) and PO Herndon. PO Herndon and PO Rodriguez alleged that while they were effecting the arrest, § 87(2)(b) punched PO Herndon in the right arm.

[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

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**Allegation C, Force: At Macombs Road Park, PO Herndon used physical force against § 87(2)(b)**

[REDACTED]

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**Allegation E, Abuse of Authority: At § 87(2)(b) PO Matthew Hart threatened to arrest § 87(2)(b)**

§ 87(2)(b) alleged that PO Hart threatened to arrest her while she was at § 87(2)(b). She stated that PO Hart insisted that she leave the area and she did not leave on account of instructions that a previous officer had given her. In his in-person statement, PO Hart stated that he was told by supervision that § 87(2)(b) was not allowed to have any visitors. PO Hart asked § 87(2)(b) and § 87(2)(b) to leave the premises several times before explaining to them that they could be arrested if they did not comply. § 87(2)(b) appeared very agitated and raised her voice. § 87(2)(b) too appeared agitated. PO Hart believed that the behavior of § 87(2)(b) and § 87(2)(b) constituted disorderly conduct, an offense for which they could have been arrested. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

In light of the above it is recommended that Allegation E be **exonerated**.

|               |       |
|---------------|-------|
| Investigator: | Date: |
| Supervisor:   | Date: |
| Reviewed by:  | Date: |
| Reviewed by:  | Date: |